

accorded to them in respect of their official acts.”
Id., at 498.

The Court today attempts to explain away that language by observing that *Spalding* indicated no intention to overrule *Kendall v. Stokes*, 3 How. 87 (1845), or *Wilkes v. Dinsman*, 7 How. 89 (1849). See *ante*, at 493 n. 18. But as the Court itself observes, the Postmaster General was held *not* “liable in an action for an error of judgment” in *Kendall*, *supra*, at 98. The Court in *Wilkes*, *supra*, likewise exonerated the defendant. The Court did indicate in dictum in both those cases that a federal officer might be liable if he acted with malice, *Kendall*, *supra*, at 99; *Wilkes*, *supra*, at 131, but the holding in *Spalding* was, as even the Court is forced to admit today, see *ante*, at 492–493, directly contrary to those cases on that point. In short, *Spalding* clearly and inescapably stands for the proposition that high-ranking executive officials acting within the outer limits of their authority are absolutely immune from suit.

Indeed, the language from *Spalding* quoted above unquestionably applies with equal force in the case at bar. No one seriously contends that the Secretary of Agriculture or the Assistant Secretary, who are being sued for \$32 million in damages, had wandered completely off the official reservation in authorizing prosecution of respondent for violation of regulations promulgated by the Secretary for the regulation of “futures commission merchants,” 7 U. S. C. § 6 (1976 ed.). This is precisely what the Secretary and his assistants were empowered and required to do. That they would on occasion be mistaken in their judgment that a particular merchant had in fact violated the regulations is a necessary concomitant of any known system of administrative adjudication; that they acted “maliciously” gives no support to respondent’s claim against them unless we are to overrule *Spalding*.

The Court’s attempt to distinguish *Spalding* may be predi-